

# PUBLIC SUBMISSION

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| <b>As of:</b> March 21, 2025                                                          |
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| <b>Tracking No.</b> m8a-zmcs-artx                                                     |
| <b>Comments Due:</b> March 15, 2025                                                   |
| <b>Submission Type:</b> API                                                           |

**Docket:** NSF\_FRDOC\_0001  
Recently Posted NSF Rules and Notices.

**Comment On:** NSF\_FRDOC\_0001-3479  
Request for Information: Development of an Artificial Intelligence Action Plan

**Document:** NSF\_FRDOC\_0001-DRAFT-6245  
Comment on FR Doc # 2025-02305

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## Submitter Information

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## General Comment

See attached file(s)

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## Attachments

White House AI Action Plan Comment Letter

From, a concerned American

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who believes strongly in the transformative power of art. As a visual artist and writer, I have worked hard for years to develop the skills and knowledge to build these skills into something I can proudly share with others, and have been lucky enough to be able to monetize this hobby – until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other American and international creators is being taken and fed into these AI systems without our knowledge, consent, or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Please remember that AI is not inevitable. By even choosing to call it "AI" we are giving the idea more credibility than it is worth. These machines and algorithms are just that, they are not sentient. They are not intelligent. They do not and can not think. They are gristle mills of stolen art of every single kind, churning out slop for the public on the very dark assumption that slop is all we want and, darker still, all we deserve.

Thank you for the opportunity to comment on these important issues.